

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-10

TZ SSE Buyer, LLC, Complainant v. Yang Ming Marine Transport Corp., Respondent

JOINT MOTION TO EXTEND BRIEFING DEADLINES

Complainant TZ SSE Buyer, LLC (“Complainant”) and Respondent Yang Ming Marine Transport Corp. (“Respondent,” and together with Complainant, the “Parties”) jointly move, pursuant to 46 C.F.R. § 502.102, for a brief extension of the briefing schedule. In support of this motion, the Parties state as follows:

1. On October 10, 2024, the Presiding Officer entered an order granting the Parties’ motion to extend the briefing schedule. This extension was provided to allow Respondent additional time to respond to Complainant’s Amended Complaint, which was served on October 8, 2024 [Docket No. 18]. The revised briefing schedule is as follows:

Task	Deadline
Complainants’ Brief, Proposed Findings of Fact, and Appendix	November 22, 2024
Respondent’s Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix	December 20, 2024
Complainants’ Reply Brief and Responses to Proposed Findings of Fact	January 6, 2025

2. Throughout October, the Parties resumed discovery, which had been previously stalled due to the former complainants’ bankruptcy proceedings, as explained in their unopposed

motion for leave to file an amended complaint on September 27, 2024 [Docket No. 13]. The Presiding Officer granted this motion on October 4, 2024 [Docket No. 14].

3. In connection with discovery, the Parties recently completed the depositions of: (1) Complainant's expert, Mr. John McCown; (2) Respondent's expert, Mr. Carl Vogt; (3) Complainant's corporate representative, Mr. Larry Hallett; and (4) Respondent's corporate representative, Ms. Osana Anki.

4. The Parties are currently awaiting the transcripts of Mr. Vogt's, and Ms. Anki's depositions. They anticipate receiving these outstanding transcripts by the end of the week of November 11, 2024, or by the week of November 18, 2024.

5. The Parties intend to rely on the contents of these deposition transcripts for their briefs and proposed findings of fact.

6. Complainant's brief is due next Friday, November 22, 2024. However, at that time, Complainant may still be missing one or more of the deposition transcripts. Without these transcripts, Complainant may be compelled to submit its brief and proposed findings of fact with incomplete information, which could result in an incomplete record for the Presiding Officer to review.

7. Additionally, if the outstanding transcripts are received close to the November 22 deadline, Complainant will have limited time to review and incorporate the material, given the substantial content of the transcripts.

8. In light of these issues, Complainant's counsel has contacted Respondent's counsel, as required by 46 CFR §§ 502.69 and 502.71, to discuss these concerns. The Parties agree that a brief extension would provide the necessary time to review and incorporate the contents of the outstanding depositions into their briefs and proposed findings of fact.

9. Accordingly, the Parties respectfully request the following extension of the Presiding Officer-ordered briefing deadlines, with consideration for the upcoming holidays. The Parties' specific request is as follows:

Task	Deadline
Complainants' Brief, Proposed Findings of Fact, and Appendix	December 9, 2024
Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix	January 10, 2024
Complainants' Reply Brief and Responses to Proposed Findings of Fact	January 24, 2024

10. Good cause exists for this request, as the Parties have not yet received the transcripts for the depositions of Mr. Vogt and Ms. Anki, which they intend to rely on in their briefs and proposed findings of fact. The inclusion of information from these transcripts in the Parties' briefs and proposed findings will ensure that the Presiding Officer has a complete record to review in making the initial decision.

11. This motion is not made for purposes of delay but rather to provide sufficient time for the Parties to receive and fully review the outstanding deposition transcripts of Mr. Vogt and Ms. Anki, and incorporate the same into their briefs and proposed findings of fact.

WHEREFORE, the Parties respectfully request that the following revised schedule be adopted in this action:

- (a) Complainants' Brief, Proposed Findings of Fact, and Appendix on or before **December 9, 2024**;
- (b) Respondent's Opposition Brief, Response to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix on or before **January 10, 2025**; and

- (c) Complainants' Reply Brief and Responses to Proposed Findings of Fact
January 24, 2025.

Dated: November 14, 2024

Respectfully jointly submitted,

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